

Forth Road Bridge Order Confirmation Act, 1960

9 ELIZ. 2 Ch. iii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

FORTH ROAD BRIDGE

1. Short and collective titles.
2. Interpretation.
3. Incorporation of further provisions of Railways Clauses Consolidation (Scotland) Act 1845.
4. Certain portions of Work No. 2 authorised by Order of 1947 may continue part of Joint Board's undertaking.
5. Orders may be made whereby portions of certain works may continue as part of Joint Board's undertaking.
6. Lighting of bridge etc.
7. Powers as to acquisition and utilisation of lands.
8. Power of Joint Board to meet cost of or contribute to improvement of Echline and Kirkliston Roads.
9. Power to provide car parks etc.
10. Further powers as to entry on lands.
11. Certain expenditure to be part of initial capital expenditure and deduction from councils' contribution thereto.
12. Amendment of First Schedule to Order of 1947.
13. Crown rights.
14. Crown minerals.
15. Saving for town and country planning.
16. Costs of Order.



CHAPTER iii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936 relating to
the Forth Road Bridge. [20th December 1960.]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936 and it is requisite that the said
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Forth Road Bridge Order
Confirmation Act 1960.

SCHEDULE

FORTH ROAD BRIDGE

Provisional Order to confer further powers on the Forth Road Bridge Joint Board and to enact further provisions with respect to certain of the works authorised by the Forth Road Bridge Orders 1947 to 1958 to make provision as to the acquisition and utilisation of lands by the said Board and for other purposes.

Whereas by the Forth Road Bridge Order 1947 the Forth Road Bridge Joint Board (hereinafter respectively referred to as the "Order of 1947" and the "Joint Board") was established and was authorised to construct a bridge over the Firth of Forth and approach roads connected therewith and to acquire lands for such purposes and further powers were conferred on the Joint Board by the Forth Road Bridge Order 1950 by the Forth Road Bridge Order 1954 and by the Forth Road Bridge Order 1958:

And whereas the construction of the said bridge (hereinafter referred to as "the bridge") is in progress and the construction of the said approach roads is about to be commenced and it is expedient in order to permit of the most appropriate method of construction of the said approach roads being adopted that certain of the powers contained in section 14 of the Railways Clauses Consolidation (Scotland) Act 1845 should be made available to the Joint Board in relation to the said approach roads and should be incorporated in the Forth Road Bridge Orders 1947 to 1958 as provided by this Order:

And whereas provision is made by the Order of 1947 whereby certain of the said approach roads authorised by the said Order should when constructed be transferred to and vested in the road authorities for the districts in which the said approach roads are situated and it is expedient that the provisions of the Order of 1947 relative to the vesting and maintenance of certain portions of the said approach roads should be varied as provided in this Order:

And whereas it is expedient that provision should be made whereby parts of Works Numbers 2 and 4 authorised by the Order of 1947 may for the purpose of the levying of tolls and for certain other purposes be deemed to be part of the bridge:

And whereas it is expedient that further powers should be conferred on the Joint Board with respect to the acquisition of lands and as to the utilisation of lands so acquired:

And whereas it is expedient with a view to facilitating the flow of traffic to and from the bridge that the provisions contained in this Order with respect to the widening and improvement of certain roads leading to and from the bridge by or on behalf of the road authority concerned should be enacted and that the Joint Board should be authorised to meet or contribute to the cost of any such widening and improvement:

And whereas it is expedient that powers should be conferred on the Joint Board with respect to the provision of car parks and that the other provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1.—(1) This Order may be cited as the Forth Road Bridge Order 1960. Short and collective titles.

(2) This Order shall be construed as one with the Forth Road Bridge Orders 1947 to 1958 and the Forth Road Bridge Orders 1947 to 1958 and this Order may be cited together as the Forth Road Bridge Orders 1947 to 1960.

2. In this Order unless the context otherwise requires— Interpretation.

(a) words and expressions to which meanings are assigned by the Forth Road Bridge Order 1947 (in this Order referred to as the “ Order of 1947 ”) shall have the same respective meanings;

(b) the expression “ Orders of 1947 to 1958 ” means the Forth Road Bridge Orders 1947 to 1958 and “ Order of 1950 ” and “ Order of 1958 ” mean the Forth Road Bridge Order 1950 and the Forth Road Bridge Order 1958 respectively;

(c) “ operational land ” has the same meaning as in section 113 of the Town and Country Planning (Scotland) Act 1947;

(d) “ public service vehicle ” has the meaning assigned to that expression by section 117 of the Road Traffic Act 1960; and

(e) “ telegraphic line ” has the same meaning as in the Telegraph Act 1878.

3. The following provisions of the Orders of 1947 to 1958 (namely):— Incorporation of further provisions of Railways Clauses Consolidation (Scotland) Act 1845.

section 5 (Incorporation of Acts) of the Order of 1947;

section 4 (Incorporation of Acts) of the Order of 1950; and

section 3 (Incorporation of Acts) of the Order of 1958;

shall be read and have effect as if in addition to the sections and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 thereby incorporated there were incorporated so much of section 14 of the said Act as relates to the making of tunnels instead of cuttings and viaducts instead of solid embankments:

Provided that—

(a) in the application of the said section to the Joint Board for the words “ authorised by such certificate as aforesaid from the Board of Trade ” there shall be substituted the words “ the consent of the Secretary of State has been obtained ”; and

(b) the reference to “ the said plan and section ” in the said section 14 shall be deemed to be a reference to the plans and sections deposited with reference to the Order of 1947 the Order of 1950 or the Order of 1958 as the case may be.

4. In the event of any part of Work No. 2 authorised by the Order of 1947 being constructed in tunnel so much of such work as is so constructed and so much thereof as lies between such tunnel and the bridge shall notwithstanding the provisions of sections 4 (Interpretation) or 34 (Vesting and maintenance of roads) of the Certain portions of Work No. 2 authorised by Order of 1947 may continue part of Joint Board's undertaking.

Order of 1947 form part of the undertaking of the Joint Board and shall for the purposes of the Orders of 1947 to 1958 and this Order be deemed to form part of the bridge and shall not vest in Fife County Council or in Dunfermline Town Council as the case may be.

Orders may be made whereby portions of certain works may continue as part of Joint Board's undertaking.

5.—(1) The Secretary of State may on the application of the Joint Board and after consultation with the road authorities concerned by order prescribe—

- (a) that any portion of Works Nos. 2 and 4 authorised by the Order of 1947 (additional to any part of the said Work No. 2 deemed to form part of the bridge pursuant to the immediately preceding section of this Order) shall when constructed form part of the undertaking of the Joint Board and shall not be transferred to and vested in the said road authorities or any of them pursuant to the Order of 1947;
- (b) that any portion of the said Works Nos. 2 and 4 (other than any portion of the said Work No. 2 deemed to form part of the bridge as aforesaid and not forming part of the undertaking vested in the Joint Board pursuant to an order made under paragraph (a) of this subsection) shall for the purposes of Part VI (Tolls) of the Order of 1947 and Part V (Tolls) of the Order of 1958 and for the purposes of any byelaws made under section 93 (Power to make byelaws) of the Order of 1947 be deemed to be part of the bridge.

(2) The power to make orders conferred on the Secretary of State by this section shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Any such order may be amended or revoked by a subsequent order made in like manner and subject to the like conditions.

Lighting of bridge etc.

6.—(1) The Joint Board may to such extent and in such manner as they may consider appropriate light the bridge and with the consent of the Secretary of State so much of Works Nos. 2 and 4 authorised by the Order of 1947 as may be agreed between the Joint Board and the road authorities concerned or may cause the same to be lit and for that purpose the Joint Board may provide instal and maintain such lighting equipment as may be requisite.

(2) Any lighting equipment provided installed or maintained under the powers of this section shall be so provided or installed and so maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Powers as to acquisition and utilisation of lands.

7.—(1) In addition to the lands which the Joint Board are authorised to acquire by the Orders of 1947 to 1958 the Joint Board may acquire by agreement any land required for the purposes of the undertaking not exceeding fifty acres.

(2) (a) The Joint Board may be authorised by the Secretary of State to purchase compulsorily any land which they may from time to time require—

- (i) for the purpose of forming junctions between any of the works authorised by the Orders of 1947 to 1958 and any roads or streets and of improving the said works; and

- (ii) for the purposes of section 9 (Power to provide car parks etc.) of this Order;

and may utilise any such land and any other land vested in the Joint Board for such purposes respectively and also in the case of land acquired for the purpose mentioned in the foregoing sub-paragraph (i) for the purposes of section 16 (Subsidiary works) of the Order of 1947.

(b) The Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 shall apply in relation to any such compulsory purchase as if this section had been contained in a public general Act in force immediately before the commencement of that Act.

(3) Nothing in this section shall authorise the compulsory acquisition of any operational land of any railway canal dock harbour gas or electricity undertakers.

(4) Subsection (2) of section 58 (Power to acquire additional lands by agreement) of the Order of 1947 and section 11 (Extension of powers to acquire lands by agreement) of the Order of 1950 are hereby repealed.

8.—(1) In respect that the widening and improvement of—

(a) the portion of Echline Road (B.9035); and

(b) the portion of the Kirkliston Road (B.800);

shown coloured red on the map signed in duplicate by Colin Neil Fraser Q.C. Counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 would facilitate the flow of traffic to and from the bridge the Joint Board may in the event of any scheme of widening and improvement of the said portion of either of the said roads in accordance with plans sections and specifications previously agreed upon between the Joint Board and West Lothian County Council being carried out by West Lothian County Council in the exercise of the powers vested in them as road authority with the approval of the Secretary of State defray the cost of the carrying out of any such scheme or make such contribution to the said cost as may be agreed between the Joint Board and West Lothian County Council.

Power of Joint Board to meet cost of or contribute to improvement of Echline and Kirkliston Roads.

(2) Within four weeks after the date of the passing of the Act confirming this Order one copy of the said map shall be deposited in the office of the clerk to the Joint Board and one copy in the office of the clerk to the West Lothian County Council and such maps shall be kept by the said clerks respectively.

9.—(1) The Joint Board may on any land for the time being vested in or leased by them provide maintain and manage car parks and may exercise all or any of the following powers upon and in respect of the whole or any part of any such land and upon and in respect of any car park provided by them under the powers of this section:—

Power to provide car parks etc.

(a) they may lay out such land and adapt the same for use as a car park and may construct and provide roads paths ramps steps and gardens;

(b) they may provide and maintain cloakrooms shelters offices information bureaux and displays lavatories and conveniences;

- (c) they may make reasonable charges for the use of any car park provided by them as aforesaid or of any building or structure provided in connection therewith;
- (d) they may make byelaws as to the use of any such car park and in particular as to the vehicles or classes of vehicles which may be entitled to use the same or any part thereof and the conditions upon which any such car park may be used;
- (e) they may set aside part of such land for the purpose of a station for public service vehicles;
- (f) they may provide maintain equip and carry on refreshment rooms and—
 - (i) may manage the same themselves and provide and sell refreshments of all kinds (other than excisable liquors); or
 - (ii) may grant to any person on such terms and conditions and for such period as they think fit the right to provide and sell refreshments of all kinds at such refreshment rooms.

(2) (a) If any person contravenes any byelaw made under paragraph (d) of subsection (1) of this section he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding ten pounds.

(b) Section 94 (Procedure for making byelaws) and section 95 (Evidence of byelaws) of the Order of 1947 shall extend and apply with respect to byelaws made under paragraph (d) of subsection (1) of this section subject to the substitution of references to the Secretary of State for the references to the Minister of Transport in the said sections.

(3) The Joint Board may enter into and carry into effect agreements with the road authority of the district in which any such car park is situated for the maintenance and management of such car park by such road authority and may delegate their powers under this section to such road authority and they may lease sell feu or otherwise dispose of any such car park to such road authority.

(4) The powers conferred on the Joint Board by this section shall be exercisable only with the consent of the Secretary of State.

(5) Nothing in this section shall empower the Joint Board—

- (a) to sell or supply motor vehicles or fuel lubricants accessories spare parts or equipment for motor vehicles; or
- (b) to carry on the business of maintaining or repairing motor vehicles.

Further powers
as to entry on
lands.

10.—(1) The powers of entry upon lands conferred upon the Joint Board and their surveyors officers and workmen and others by section 50 (Power to enter upon lands and buildings for survey and valuation) of the Order of 1947 and by section 8 (Application of provisions of Order of 1947 as to acquisition of lands) of the Order of 1950 and by section 7 (Application of provisions of Order of 1947 as to acquisition of lands) of the Order of 1958 shall be construed as including power to search and bore for the purpose of ascertaining the nature of the subsoil or the presence of minerals therein:

Provided that such power shall not be exercised with respect to any land unless notice of the intention of the Joint Board to do so has been included and the nature of the operations proposed to be carried out has been specified in the notice required to be given to the occupier of the land pursuant to the said section 50 of the Order of 1947 which notice shall be given not less than seven days before the first entry and in any such case the Joint Board shall not be required to give further notice in respect of any subsequent entry on the land for the purposes of carrying out the operations specified in the notice.

(2) In the exercise of the powers conferred by this section the Joint Board shall cause as little detriment and inconvenience to any person as circumstances allow and shall make compensation to the owners and occupiers of any lands injuriously affected by the exercise of such powers such compensation in case of difference to be determined by an official arbitrator under the Acquisition of Lands (Assessment of Compensation) Act 1919.

(3) If any land to which this section applies is operational land held by any statutory undertakers and those undertakers object to the exercise of the powers of this section with respect to such land held by them on the ground that the exercise of such powers would be seriously detrimental to the carrying on of their undertaking the said powers shall not be exercised except with the authority of the Secretary of State.

11.—(1) All expenditure incurred by the Joint Board in the exercise of the powers conferred on them by this Order so far as properly attributable to works of a capital nature shall for the purposes of the Order of 1958 be deemed to form part of the initial capital expenditure referred to in and defined by section 23 (Definitions for Part IV of Order) of the Order of 1958.

Certain expenditure to be part of initial capital expenditure and deduction from councils' contribution thereto.

(2) In calculating for the purposes of section 25 (Councils' contribution towards initial capital expenditure) of the Order of 1958 there shall be deducted from the amount which the Joint Board shall be entitled to receive from the councils towards the initial capital expenditure (in addition to the amounts to be deducted in accordance with subsection (1) of the said section) a sum equal to the amount paid by the Joint Board in pursuance of section 16 (Costs of Order) of this Order.

12. Paragraph 9 of Part II of the First Schedule to the Order of 1947 shall be read and have effect as if paragraphs (a) (b) and (c) of the proviso to sub-paragraph (1) thereof were omitted therefrom.

Amendment of First Schedule to Order of 1947.

13. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any lands buildings or works vested in or occupied by the Crown or any department of Her Majesty's Government except to such an extent as Her Majesty or such department may voluntarily agree and in particular nothing herein contained shall authorise the Joint Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of the said commissioners on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.

- Crown minerals. 14. Notwithstanding the provisions contained in section 13 (Crown rights) of this Order or in any public statute but subject as hereinafter in this section provided Her Majesty and Her Lessees for their respective interests may work any minerals belonging to Her Majesty in right of Her Crown under or adjacent to lands and works authorised by this Order to be taken or constructed but in the event of any such right being at any time intended to be exercised sections 70 to 78 (both inclusive) of the Railways Clauses Consolidation (Scotland) Act 1845 as amended by the Mines (Working Facilities and Support) Act 1923 and the First Second and Third Schedules to such last-mentioned Act as the same are incorporated with and modified by the Order of 1947 shall apply in relation to such minerals and as if the Crown Estate Commissioners were the mine owners or royalty owners as the case may be and so that any compensation payable by the Joint Board to or for the benefit of Her Majesty as the mine owner or royalty owner or payable to the Joint Board by Her Majesty as such owner shall be payable to or by the said commissioners as the case may be.
- Saving for town and country planning. 15. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning (Scotland) Act 1947 for the purposes of subsection (4) of section 11 and subsection (1) of section 112 of that Act.
- Costs of Order. 16. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Joint Board.

Table of Statutes referred to in this Act

Short title	Session and chapter
Railways Clauses Consolidation (Scotland) Act 1845	8 & 9 Vict. c. 33.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Acquisition of Lands (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Mines (Working Facilities and Support) Act 1923	13 & 14 Geo. 5 c. 20.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947	10 & 11 Geo. 6 c. 42.
Town and Country Planning (Scotland) Act 1947	10 & 11 Geo. 6 c. 53.
Road Traffic Act 1960	8 & 9 Eliz. 2 c. 16.

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR
SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 9d. net

PRINTED IN ENGLAND